

MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Catherine D Holmes, David B Holmes and Emma Q H Singer move, pursuant to California Code of Civil Procedure 871.26, for an order: (1) Compelling Defendant FCA US LLC (FCA) to comply with Section 871.26 by producing documents described in subdivisions (h)(6)-(10), and (h)(12)-(13); and (2) Imposing monetary sanctions against FCA and its counsel of record in the amount of \$2,500.00.³

The Court finds no merit in Plaintiffs' assertion that FCA is required to provide "written responses accompanied by verifications of defense counsel to the mandatory section 871.26(h) disclosures." (Support Memo at 6:20-21.) First, it is unclear what a "response" would be in the context of Section 871.26. As the statute provides for mandatory disclosures, there is no request, as with traditional discovery, requiring a response. More fundamentally, Section 871.26 does not mandate any statement of compliance. The lack of such a provision in the subject statute stands in contrast with the requirement of a verified declaration of compliance set forth in Section 2016.090, subdivision (a)(5). The Legislature was clearly capable of including such requirement in Section 871.26, but did not.

Plaintiffs' reliance on Section 2016.090, subdivision (a)(5), is misplaced. That statute mandates disclosure of a different universe of documents from Section 871.26. Plaintiffs do not, by the instant motion, suggest or support any suggestion that FCA failed to comply with the initial disclosure requirements of Section 2016.090.

Plaintiffs fail to produce evidence that FCA withheld any document that it was obligated to produce. The statement in counsel's declaration that "FCA US LLC has failed to provide complete and compliant disclosures as mandated by § 871.26(h)" is conclusory, vague, and abstract. (Declaration of Breana Rucker at ¶ 4.) Counsel, through her declaration, neither identifies any specific document or category of documents, nor contends that any document was withheld by FCA.

Through their Support Memo, Plaintiffs argue that FCA is required, by the mandates of Section 871.26, to perform certain specific database searches (see Support Memo at 7:21-9:22)

³ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

and that FCA has not produced certain types of documents. (see *id.* at 9:23-21:26.) These discussions are technical in nature and Plaintiffs' arguments rely on a host of factual assertions regarding computerized systems and databases. However, Plaintiffs provide no evidence in support of any of these technical assertions. And, as discussed above, Plaintiffs provide no evidence tending to show that FCA improperly withheld any document that falls within the described categories.

Through the Opposition, FCA presents evidence that it "served all of the documents required by [Section 871.26] with the exception of those confidential documents subject to protective order." (Declaration of Matthew M. Proudfoot at ¶ 7.) It appears uncontradicted, however, that FCA proposed terms for a stipulated protective order, aimed at protecting confidentiality, prior to the deadline for its disclosure. (See *id.* at ¶ 5.) Moreover, the Court takes Judicial Notice of the fact that it entered a stipulated protective order in the matter on July 7, 2026.

On Reply, Plaintiffs contend that "[Section] 871.26 does not allow a manufacturer to withhold documents on confidentiality grounds . . ." (*Id.* at 1:12-13.) "The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision's central concern." (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) The Court does not find that either the letter or spirit of the initial disclosure statute is violated by FCA's assertion of its right to privacy, and its reasonable and diligent efforts to obtain a protective order.

Plaintiffs then argue that a number of categories of documents are not confidential. (See Reply at 3:14, *et seq.*) Again, however, Plaintiffs failed, in support of their moving papers, to produce evidence that any specific documents within these categories were withheld by FCA.

Based on the foregoing, Plaintiffs motion to compel compliance with Section 871.26 is DENIED. For this reason, Plaintiffs request for monetary sanctions is also DENIED.